

FL-20-001811 GONZALES VS DIAZ

County: stanislaus

Division: Family Law

Department: 14

Hearing date: 2026-09-14

Motion: Petitioner's Request for Order re "Set Aside FOAH," etc.—HEARING REQUIRED. Petitioner seeks to set aside the Findings and Order After Hearing (FOAH) of August 6, 2026, on grounds of mistake, inadvertence, surprise or excusable neglect pursuant to Code of Civil Procedure section 473(b). The FOAH of August 6th sets forth child custody and visitation orders after the parties underwent mandatory mediation in response to Petitioner's original Request for Order (RFO) seeking child support and child custody orders. Petitioner alleges that, during the mediation, she was unable to explain her views to the mediator due to obstreperous conduct by Respondent's counsel, among other things. Originally, section 473(b) relief applied only to defaults or dismissals, but was subsequently amended to include circumstances "analogous" to default by including the language "order, or other proceeding" to the list of matters encompassed by the statute. (See, i.e., *Las Vegas Land & Develop. Co., LLC v. Wilkie Way, LLC* (2013) 219 Cal.App.4th 1086, 1090-1091[noting the split of authority in the context of motions for summary judgment]; *Weil & Brown, Cal. Prac. Guide Civ. Pro. Before Trial* (TRG 2026) Ch. 5-G, § 5:300.6.) Here, it is not necessary for the Court to choose either side of this split of authority since the matter involves a pendente lite and temporary child custody and visitation order that is modifiable—meaning not final—until the minor child obtains majority. For this reason, in granting Petitioner's request for an Order Shortening Time, the Court construed Petitioner's RFO as an "objection" to the FOAH of August 6th. A hearing is therefore necessary. The Court notes and has considered the counter-requests contained in the declaration of Respondent's counsel; however, the Court deems the conduct-based sanctions request pursuant to Family Code section 271, and the monetary sanctions request against a non-party legal document assistant, to be outside the scope of the Petitioner's RFO, and therefore denies such without prejudice. (Fam. Code, § 213(a); Cal. Rules of Ct., rule 5.92(g)(2) ["unrelated relief must be sought by scheduling a separate hearing..."].) The Court recognizes that authority exists to the contrary, but finds that the sanctions request here by Respondent's counsel goes beyond "attacking the messenger" and is fundamentally an attack on the "message" alleged by Petitioner's RFO. (See, *In re Marriage of Perow & Uzelac* (2019) 31 Cal.App.5th 984, 991 ["A party seeking attorney fees under section 271 is not seeking affirmative relief within the meaning of section 213 because the request for such fees is an attack on the messenger, not his message"].) The following are the tentative ruling cases calendared before Judge Maria Elena Ramos-Ratliff in Department #25:

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